

ATTACHMENTS:

- a. Conservation Restriction (required) ☒ Yes ☐ No
- b. USGS Topographic map with area identified thereon (required) ☒ Yes ☐ No
- c. Photographs (required); aerial (if available) ☒ Yes ☐ No
- d. Applicable federal, state or local plans, programs (excerpts therefrom)
Or zoning ordinances, if appropriate *assess no map* ☒ Yes ☐ No
- e. Survey, plotmap, or sketch plan (required) ☒ Yes ☐ No
- f. Special reports, studies, (if available) ☐ Yes ☒ No
- g. Natural resource inventory, (if available) ☐ Yes ☒ No
- h. Wetlands Order of Conditions C.131.540, (if applicable) ☒ Yes ☐ No
- i. C. 40A, §9 Special Permit, (if applicable) ☐ Yes ☒ No
- j. I.R.S. letter ruling, (if applicable) ☒ Yes ☐ No
- k. Charitable status documentation, (if applicable) ☒ Yes ☐ No
- l. Assent of mortgagee(s) (if applicable) ☐ Yes ☒ No
- m. USDA Soil Data, (if applicable) ☐ Yes ☒ No
- n. Other (please specify) ☐ Yes ☒ No

NOTES:

The conservation restriction must be prepared in a form suitable for recording and be approved and signed by the grantor, grantee, and municipal official(s). The applicant may wish to submit a draft of the conservation restriction document for a determination as to whether it is acceptable for approval by the Secretary. This procedure is recommended in situations in which the gift is complex or the applicant needs guidance in drafting an acceptable document. Regardless of whether the applicant files a draft or executed conservation restriction, all required attachments must be submitted for review.

The Division of Conservation Services, as part of its records retention program and in conjunction with the Massachusetts State Archivist, will retain the grantee's baseline data in the State Archives at no cost. Grantees need

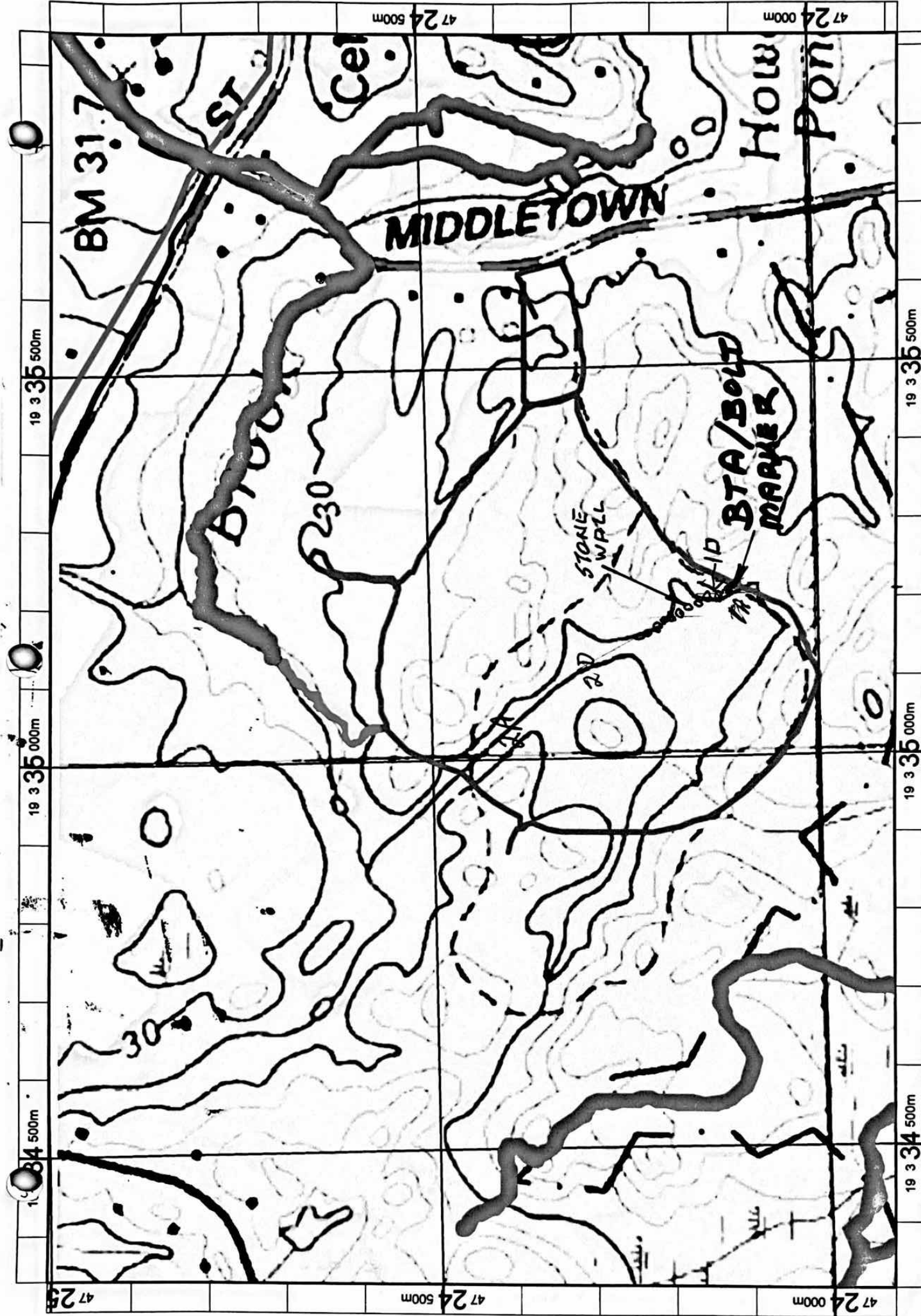
own copy

Judy,

I looked over the draft of the Townend Farm CR. The following are my thoughts/suggestions:

1. I agree that paragraph (g) under "Prohibited Activities" is very restrictive as currently worded. If other passive recreational activities are to be permitted, these activities should be specified.
2. Clearly identifying under "Reserved Activities" which activities are to be permitted is particularly important in this CR, because this CR does not contain the standard language setting forth that "all acts not prohibited in paragraph 1 are permissible." This language having been omitted, the status of activities that are not expressly prohibited, but not expressly reserved, is unclear. It is important to BTA/BOLT that the CR identify as unambiguously as possible what activities are permitted, so it is clear when it needs to take steps to enforce. Given that walking and perhaps other forms of passive recreation will be permitted, these activities should be specifically set forth under "Reserved Activities." Likewise, assuming the town does have an easement for maintenance and use of the firepond as we suspect it does, the CR should specify under "Reserved Rights" that "Activities necessary for the maintenance and use of the firepond" are reserved. Serious thought should be given to make sure that there are not any other activities that everyone agrees should be permitted. If there are such other activities, they should be identified under "Reserved Activities."
3. My draft does not contain the signature pages. Since a corporation owns this parcel, we need to confirm that the appropriate individual/individuals ultimately execute the CR (usually president and treasurer).
4. I remain somewhat concerned about the firepond, and would suggest not finalizing the CR until we understand the status of this pond. Although it probably will not impact the language of the CR, we should confirm that nothing in the CR is inconsistent with the town's or association's rights/obligations with respect to the firepond.

Angela



Name: LAWRENCE

Date: 2/23/2007

Scale: 1 inch equals 500 feet

Location: 19 0335126 E 4724445 N NAD 27

Caption: Townsend Farm, Parcel "A"

11:25; 1:1; 400%

ALP 2/23/07

LEGEND

TAX MAP BLOCK LIMIT —

TAX MAP BLOCK NO.

PARCEL NO.

TOWN LINE

SCHOOL

POND

CHURCH

CEMETERY

CREEK

TRANSMISSION LINE

FENCE

SCALE 1" = 200'

DATE OF PHOTOGRAPHY MAY, 1964

DATE REVISED APRIL, 1968

STEWART MAPPING SERVICE

PRINCETON, NEW JERSEY

FOR TAX PURPOSES ONLY

NOTE: PARCEL NO. 101 DELETED

OLD BARN HILL ROAD

10 2.42 AC. 80

TOWN OF BOXFORD

BOXFORD, MA

34-1-59

34-1-58

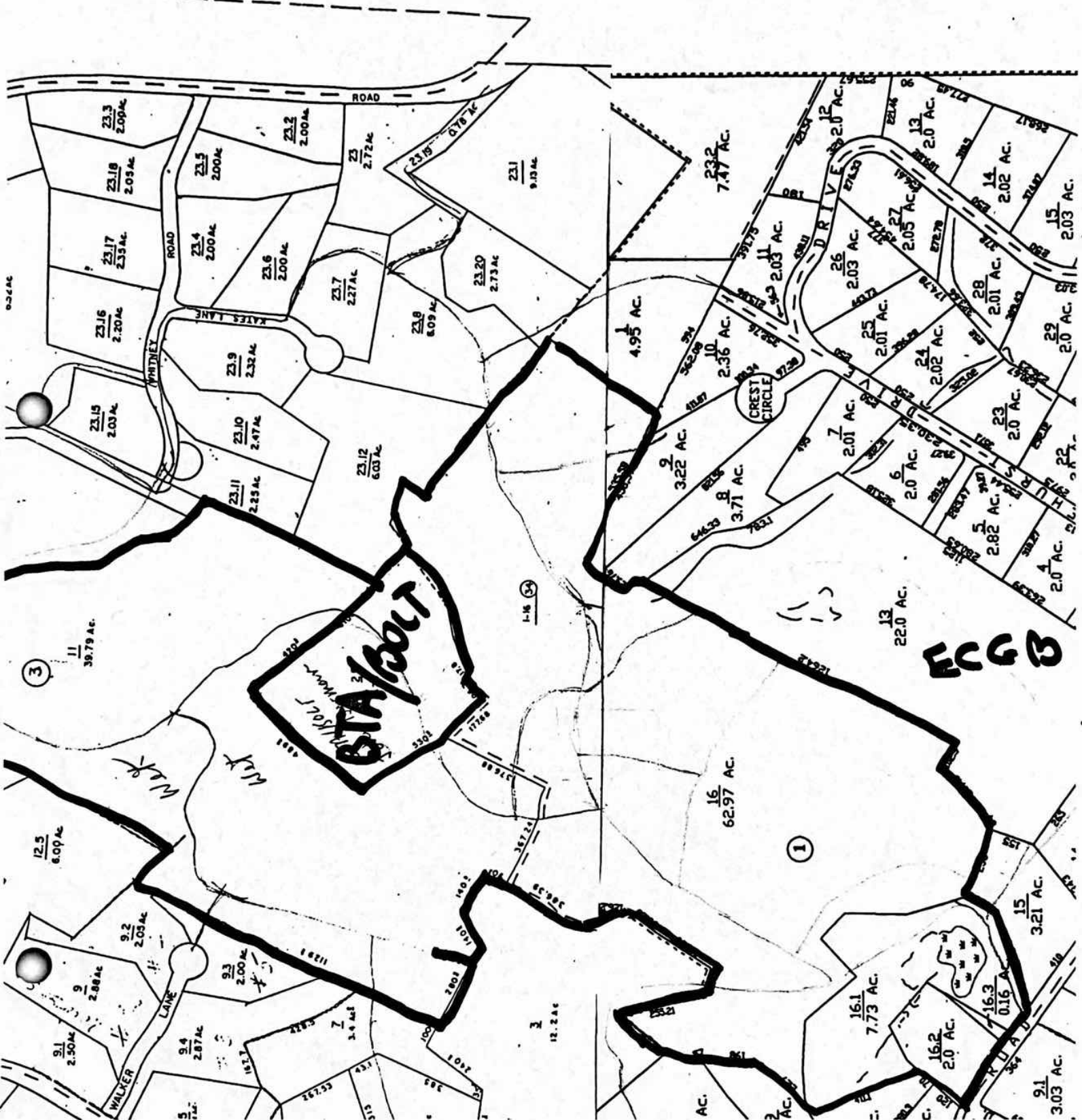
34-1-72

34-1-173

28 29 30

32 33 34

N



DEED OF EASEMENT

PETER S. CONFALONE and DOUGLAS R. CONN, as they are Trustees of the Middleton Road Boxford Realty Trust under written Declaration of Trust dated July 2, 1985, and recorded with the Essex South District Registry of Deeds, Book 7817, Page 524, of North Reading, Massachusetts, for nominal consideration of One Dollar (\$1.00) and other valuable consideration, the receipt of which is hereby acknowledged, grants to the Inhabitants of the Town of Boxford, with Quitclaim Covenants the following easements and license over a portion of the land situated in Boxford, Essex County, Commonwealth of Massachusetts and shown on a Subdivision Plan entitled "Definitive Subdivision Plan of Townsend Farms in Boxford, Massachusetts," Owner and Applicant Middleton Road Boxford Realty Trust, Engineer Hancock Survey Associates, Scale 1" = 200', said plan dated December 2, 1985 consisting of 30 sheets and said plan recorded with the Essex South District Registry of Deeds, Plan Book 214, Page 79.

RECEIVED FOR RECORD
ENTERED WITH ESSEX SOUTH
DISTRICT REGISTRY OF DEEDS
SALEM, MASS. FEE

NOV 20 1986

11 O'CLOCK

PAGE

1. A 20' wide Bridle Trail Easement (non-motorized) across a portion of Lot 25 shown on said Subdivision Plan.

2. A 30' wide Bridle Trail Easement (non-motorized) across a portion of Lot 23 shown on said Subdivision Plan.

3. A triangular Bridle Path Easement (non motorized) having a hypotenuse of 77.62 feet across a portion of Lot 18 shown on said Subdivision Plan.

The aforesaid easements are for the purpose of access by foot or by horseback to the Grantees subject to the condition that no motorized vehicles shall be permitted to use such easement and further subject to such other conditions that may be imposed upon such easements by the Grantees acting by and through the Boxford Board of Selectmen.

REGNANTE, REGNANTE
& STERIO

ATTORNEYS AT LAW
ESSEXBANK BUILDING

ON EX CENTER DRIVE
PL 00V, MASS. 01960

TEL (617) 532-3060

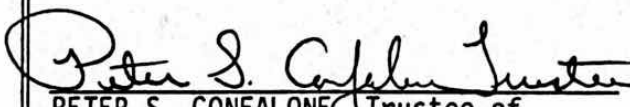
4. A 10' wide Non-Motorized Bridle Path License across a portion of Parcel A and Lots 31 and 6 shown on the aforesaid Subdivision Plan.

Such Bridle Path License is for the purpose of providing access by foot or by horseback to the Grantees subject to the condition that no motorized vehicles shall be permitted to use such license and further subject to such other conditions that may be imposed upon such license by the Grantees acting by and through the Boxford Board of Selectmen. The aforesaid license shall be applicable for a period of one (1) year from the date hereof and renewable thereafter, on an annual basis by the Grantors' designee, the Townsend Farms Green Belt Association, Inc., a Massachusetts corporation duly organized for the purpose of holding title to Parcel "A" shown on said Plan under certain conditions set forth in a Covenant given by the Grantors to the Town of Boxford dated November 19, 1986 and recorded with Essex South District Registry of Deeds, herewith.

Grantors agree to do all necessary work to cause the aforesaid areas to be usable and passable for the purposes stated herein.

The grantors warrant that the aforesaid easements are free and clear of all liens or encumbrances and that the grantors have good title to convey the same.

Executed as a sealed instrument this 19th day of November, 1986.


PETER S. CONFALONE, Trustee of
Middleton Road Boxford Realty Trust


DOUGLAS R. CONN, Trustee of
Middleton Road Boxford Realty Trust

COMMONWEALTH OF MASSACHUSETTS

ESSEX, SS.

November 19, 1986

Then personally appeared the above named PETER S. CONFALONE and DOUGLAS R. CONN, Trustees aforesaid and acknowledged the foregoing instrument to be their free act and deed, before me



THEODORE C. REGNANTE, Notary Public

My commission expires: December 29, 1989

REGNANTE, REGNANTE
& STERIO
ATTORNEYS AT LAW
ESSEXBANK BUILDING
ONE BANK CENTER DRIVE
PEPPERUDDY, MASS. 01960
TEL (617) 532-3060



The Commonwealth of Massachusetts
Executive Office of Energy and Environmental Affairs
100 Cambridge Street, Suite 900
Boston, MA 02114

Deval L. Patrick
GOVERNOR

Timothy P. Murray
LIEUTENANT GOVERNOR

Ian A. Bowles
SECRETARY

Tel: (617) 626-1000
Fax: (617) 626-1181
<http://www.mass.gov/envir>

Date:

8/23/07

To:

Judy Gore
978-887-7031

FAX#:

FROM:

Jennifer Soper, Regional Planner

RE:

Box 612

Conservation Restriction #

32

I am faxing my comments on the Conservation Restriction you submitted for your review, as well as the checklist I use in reviewing these. If you have difficulty understanding what I have written, the checklist may be of some assistance in determining what needs to be changed, or what wording is missing. If my notes are still unclear, please don't hesitate to call me at (617) 223-1745.

The Conservation Restriction has been reviewed by our legal department as well as by me, so once the changes have been made you may obtain your local signatures and send it in to me for final review and approval. However, if there is a comment you are unsure about or if I have a question mark next to anything, it is something we need to discuss. This way I can get clarification or perhaps help with finding suitable language to meet our requirements on unusual provisions.

I look forward to finalizing this and please remember to refer to our internal CR number in all correspondence or inquiries. Thanks!

Jennifer Jillson Soper, Regional Planner
Division of Conservation Services

e-mail from
Niche Soper
617-626-1014

Town Buxford
CR# 32 Acres 11.77

Grantor: Buxford Trails Assoc & Buxford Land Trust
Grantee: Town of Buxford Conscom

8/23/07

Conservation Restriction Checklist		Jennifer	Legal	Comments
Grantor defined, including successors and assigns		☒		
Grantee inc permitted successors & assigns, sec. 32 eligible		☒		
If town, acting by & thru its ConsCom by authority of MGL c. 40 s. 8C		☒		
Grantor's title (e.g. book, page, deed) in first paragraph		☒		
Granted in perpetuity & for conservation purposes		☒		
Consideration stated?		☒		
Charitable?		☒		
Conservation Commission other certification CR is in public interest		☒		
Reference to c. 184 Sections 31-33		☒		
Extracted CR? - required by permit? If subdivision, most recent plan		☒		
Grant funded? SH, USH, LWCF, Drinking Water, Partnership Program		☒		
"Premises" defined (include legal description in CR of Exhibit A)		☒		
Location, # of acres, labeled CR? approp exhibits & plans attached		☒		
CR entire parcel? If no, is restricted land clear (state portion), monumentation & signage if not entire lot		☒		
Building envelopes well located, not oversized (i.e., 7 A lot w/ 5 A CR)		☒		
Public purposes/benefits? i.e. public access, natural resource prot., water quality, drinking water (wells), wetlands, flood control		☒		
Field Inspection Report - esp. if extracted CR		☒		
Prohibited Uses: Grantor will neither perform nor allow others to perform subdiv. no portion to be used for bldg rect on this or any other parcel temp or perm. Bldgs. on, above, below, in part of official duties		☒		
Are permitted uses consistent with purposes?		☒		
Public health, nuisance insect, plant control, non-native or invasive		☒		
Legal Remedies of Grantee		☒		
Access - Grantee access required, public optional		☒		
Extinguishment (if not required by permit/Permit? Y <u>N</u>)		☒		
Proportional value (improvements? Y <u>N</u>)		☒		
Public Action (Eminent domain?)		☒		
Compensation funds to be used in trust for CR purposes		☒		
Assignability: Running of burden/benefit/execution of instruments		☒		
Section 32 "qualified organization"		☒		
Severability clause		☒		
Non-Waiver clause		☒		
Subsequent transfers - failure to notify shall not impair CR		☒		
Acts beyond control: parties will cooperate in restoring if feasible		☒		
Estoppel Certificates - part of Grantee if fails to obtain copy		☒		
Is there a mortgage? Subordination clause?		☒		
Effective Date (upon signature and recordation)		☒		
This CR shall be recorded in a timely manner		☒		
Amendment (any amendment must be approved by the Secretary)		☒		
Check signatures: Grantor (notary), Grantee (notary), Selection, Secretary		☒		
Approval does not represent the existence, nonexistence of public rights		☒		

new name: Ecology & Environmental Affairs

del 8/23/07